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THE IDEA OF JUSTICE



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Introduction

An Approach to Justice

About two and a half months before the storming of the Bastille in Paris, which was effectively the beginning of the French Revolution, the political philosopher and orator, Edmund Burke, said in Parliament in London: ‘An event has happened, upon which it is difficult to speak, and impossible to be silent.’ This was on 5 May 1789. Burke’s speech had nothing much to do with the developing storm in France. The occasion, rather, was the impeachment of Warren Hastings, who was then commanding the British East India Company, which was setting up British rule in India, beginning with the Company’s victory in the Battle of Plassey (on 23 June 1757).

In impeaching Warren Hastings, Burke invoked the ‘eternal laws of justice’ which, Burke claimed, Hastings had ‘violated’. The impossibility of remaining silent on a subject is an observation that can be made about many cases of patent injustice that move us to rage in a way that is hard for our language to capture. And yet any analysis of injustice would also demand clear articulation and reasoned scrutiny.

Burke did not, in fact, give much evidence of being lost for words: he spoke eloquently not on one misdeed of Hastings but on a great many, and proceeded from there to present simultaneously a number of separate and quite distinct reasons for the need to indict Warren Hastings and the nature of the emerging British rule in India:

I impeach Warren Hastings, Esquire, of high crimes and misdemeanours.

I impeach him in the name of the Commons of Great Britain in Parliament assembled, whose Parliamentary trust he has betrayed.

I impeach him in the name of all the Commons of Great Britain, whose national character he has dishonoured.

I impeach him in the name of the people of India, whose laws, rights, and liberties he has subverted; whose properties he has destroyed, whose country he has laid waste and desolate.

I impeach him in the name and by virtue of those eternal laws of justice which he has violated.

I impeach him in the name of human nature itself, which he has cruelly outraged, injured, and oppressed, in both sexes, in every age, rank, situation, and condition of life.¹

No argument is separated out here as *the* reason for impeaching Warren Hastings – as an isolated knock-out punch. Instead, Burke presents a collection of distinct reasons for impeaching him.* Later on in this work, I will examine the procedure of what can be called ‘plural grounding’, that is, of using a number of different lines of condemnation, without seeking an agreement on their relative merits. The underlying issue is whether we have to agree on one specific line of censure for a reasoned consensus on the diagnosis of an injustice that calls for urgent rectification. What is important to note here, as central to the idea of justice, is that we can have a strong sense of injustice on many different grounds, and yet not agree on one particular ground as being *the* dominant reason for the diagnosis of injustice.

Perhaps a more immediate, and more contemporary, illustration of this general point about congruent implications can be given by considering a recent event, involving the decision of the US government to launch a military invasion of Iraq in 2003. There are diverse ways of judging decisions of this kind, but the point to be considered here is that it is possible that a number of distinct and divergent

* I am not commenting here on the factual veracity of Burke’s claims, but only on his general approach of presenting plural grounds for indictment. Burke’s particular thesis about Hastings’s personal perfidy was actually rather unfair to Hastings. Oddly enough, Burke had earlier defended the wily Robert Clive, who was a great deal more responsible for lawless plunder of India under the Company’s dominance – something that Hastings did try to stem through a greater emphasis on law and order (as well as through bringing in a measure of humanity in the Company’s administration which was badly missing earlier). I have discussed these historical events in a Commemorative Speech at the London City Hall, on the occasion of the 250th anniversary of the Battle of Plassey (‘The Significance of Plassey’), in June 2007. The lecture was published, in an extended version, as ‘Imperial Illusions: India, Britain and the wrong lessons’, *The New Republic*, December 2007.

arguments can still lead to the same conclusion – in this case, that the policy chosen by the US-led coalition in starting the war in Iraq in 2003 was mistaken.

Consider the different arguments that have been presented, each with considerable plausibility, as critiques of the decision to go to war in Iraq.* First, the conclusion that the invasion was a mistake can be based on the necessity for more global agreement, particularly through the United Nations, before one country could justifiably land its army on another country. A second argument can focus on the importance of being well informed, for example on the facts regarding the presence or absence of weapons of mass destruction in pre-invasion Iraq, before taking such military decisions, which would inevitably place a great many people in danger of being slaughtered or mutilated or displaced. A third argument may be concerned with democracy as ‘government by discussion’ (to use that old phrase often linked with John Stuart Mill, but which was used earlier by Walter Bagehot), and concentrate instead on the political significance of informational distortion in what is presented to the people of the country, including cultivated fiction (such as the imaginary links of Saddam Hussein with the events on 9/11 or with al-Qaeda), making it harder for the citizens of America to assess the executive proposal to go to war. A fourth argument could see the principal issue to be none of the above, but instead the actual *consequences* of the intervention: would it bring peace and order in the country invaded, or in the Middle East, or in the world, and could it have been expected to reduce the dangers of global violence and terrorism, rather than intensifying them?

These are all serious considerations and they involve very different evaluative concerns, none of which could be readily ruled out as being irrelevant or unimportant for an appraisal of actions of this kind. And in general, they may not yield the same conclusion. But if it is shown, as in this specific example, that all of the sustainable criteria lead to the same diagnosis of a huge mistake, then that specific conclusion

* Arguments were of course also presented in favour of intervention. One was the belief that Saddam Hussein was responsible for the terrorism on 9/11, and another that he was hand-in-glove with al-Qaeda. Neither accusation proved to be correct. It is true that Hussein was a brutal dictator, but then there were – and are – many others across the world with the same qualification.

need not await the determination of the relative priorities to be attached to these criteria. Arbitrary reduction of multiple and potentially conflicting principles to one solitary survivor, guillotining all the other evaluative criteria, is not, in fact, a prerequisite for getting useful and robust conclusions on what should be done. This applies as much to the theory of justice as it does to any other part of the discipline of practical reason.

REASONING AND JUSTICE

The need for a theory of justice relates to the discipline of engagement in reasoning about a subject on which it is, as Burke noted, very difficult to speak. It is sometimes claimed that justice is not a matter of reasoning at all; it is one of being appropriately sensitive and having the right nose for injustice. It is easy to be tempted to think along these lines. When we find, for example, a raging famine, it seems natural to protest rather than reason elaborately about justice and injustice. And yet a calamity would be a case of injustice only if it could have been prevented, and particularly if those who could have undertaken preventive action had failed to try. Reasoning in some form cannot but be involved in moving from the observation of a tragedy to the diagnosis of injustice. Furthermore, cases of injustice may be much more complex and subtle than the assessment of an observable calamity. There could be different arguments suggesting disparate conclusions, and evaluations of justice may be anything but straightforward.

The avoidance of reasoned justification often comes not from indignant protesters but from placid guardians of order and justice. Reticence has appealed throughout history to those with a governing role, endowed with public authority, who are unsure of the grounds for action, or unwilling to scrutinize the basis of their policies. Lord Mansfield, the powerful English judge in the eighteenth century, famously advised a newly appointed colonial governor: ‘consider what you think justice requires and decide accordingly. But never give your reasons; for your judgement will probably be right, but your reasons will certainly be wrong.’² This may well be a good advice for tactful

governance, but it is surely no way of guaranteeing that the right things are done. Nor does it help to ensure that the people affected can see that justice is being done (which is, as will be discussed later, part of the discipline of making sustainable decisions regarding justice).

The requirements of a theory of justice include bringing reason into play in the diagnosis of justice and injustice. Over hundreds of years, writers on justice in different parts of the world have attempted to provide the intellectual basis for moving from a general sense of injustice to particular reasoned diagnoses of injustice, and from there to the analyses of ways of advancing justice. Traditions of reasoning about justice and injustice have long – and striking – histories across the world, from which illuminating suggestions on reasons of justice can be considered (as will be examined presently).

THE ENLIGHTENMENT AND A BASIC DIVERGENCE

Even though the subject of social justice has been discussed over the ages, the discipline received an especially strong boost during the European Enlightenment in the eighteenth and nineteenth centuries, encouraged by the political climate of change and also by the social and economic transformation taking place then in Europe and America. There are two basic, and divergent, lines of reasoning about justice among leading philosophers associated with the radical thought of that period. The distinction between the two approaches has received far less attention than, I believe, it richly deserves. I will begin with this dichotomy since that will help to locate the particular understanding of the theory of justice that I am trying to present in this work.

One approach, led by the work of Thomas Hobbes in the seventeenth century, and followed in different ways by such outstanding thinkers as Jean-Jacques Rousseau, concentrated on identifying just institutional arrangements for a society. This approach, which can be called ‘transcendental institutionalism’, has two distinct features. First, it concentrates its attention on what it identifies as perfect justice,

rather than on relative comparisons of justice and injustice. It tries only to identify social characteristics that cannot be transcended in terms of justice, and its focus is thus not on comparing feasible societies, all of which may fall short of the ideals of perfection. The inquiry is aimed at identifying the nature of ‘the just’, rather than finding some criteria for an alternative being ‘less unjust’ than another.

Second, in searching for perfection, transcendental institutionalism concentrates primarily on getting the institutions right, and it is not directly focused on the actual societies that would ultimately emerge. The nature of the society that would result from any given set of institutions must, of course, depend also on non-institutional features, such as actual behaviours of people and their social interactions. In elaborating the likely consequences of the institutions, if and when a transcendental institutionalist theory goes into commenting on them, some specific behavioural assumptions are made that help the working of the chosen institutions.

Both these features relate to the ‘contractarian’ mode of thinking that Thomas Hobbes had initiated, and which was further pursued by John Locke, Jean-Jacques Rousseau and Immanuel Kant.³ A hypothetical ‘social contract’ that is assumed to be chosen is clearly concerned with an ideal alternative to the chaos that might otherwise characterize a society, and the contracts that were prominently discussed by the authors dealt primarily with the choice of institutions. The overall result was to develop theories of justice that focused on transcendental identification of the ideal institutions.*

It is important, however, to note here that transcendental institutionalists in search of perfectly just institutions have sometimes also presented deeply illuminating analyses of moral or political imperatives regarding socially appropriate behaviour. This applies particu-

* Even though the social contract approach to justice initiated by Hobbes combines transcendentalism with institutionalism, it is worth noting that the two features need not necessarily be combined. We can, for example, have a transcendental theory that focuses on social realizations rather than on institutions (the search for the perfect utilitarian world with people blissfully happy would be a simple example of pursuing ‘realization-based transcendence’). Or we can focus on institutional assessments in comparative perspectives rather than undertaking a transcendental search for the perfect package of social institutions (preferring a greater – or indeed lesser – role for the free market would be an illustration of comparative institutionalism).

larly to Immanuel Kant and John Rawls, both of whom have participated in transcendental institutional investigation, but have also provided far-reaching analyses of the requirements of behavioural norms. Even though they have focused on institutional choices, their analyses can be seen, more broadly, as ‘arrangement-focused’ approaches to justice, with the arrangements including right behaviour by all as well as right institutions.* There is, obviously, a radical contrast between an arrangement-focused conception of justice and a realization-focused understanding: the latter must, for example, concentrate on the actual behaviour of people, rather than presuming compliance by all with ideal behaviour.

In contrast with transcendental institutionalism, a number of other Enlightenment theorists took a variety of comparative approaches that were concerned with social realizations (resulting from actual institutions, actual behaviour and other influences). Different versions of such comparative thinking can be found, for example, in the works of Adam Smith, the Marquis de Condorcet, Jeremy Bentham, Mary Wollstonecraft, Karl Marx, John Stuart Mill, among a number of other leaders of innovative thought in the eighteenth and nineteenth centuries. Even though these authors, with their very different ideas of the demands of justice, proposed quite distinct ways of making social comparisons, it can be said, at the risk of only a slight exaggeration, that they were all involved in comparisons of societies that already existed or could feasibly emerge, rather than confining their analyses to transcendental searches for a perfectly just society. Those focusing on realization-focused comparisons were often interested primarily in the removal of manifest injustice from the world that they saw.

The distance between the two approaches, *transcendental institutionalism*, on the one hand, and *realization-focused comparison*, on the other, is quite momentous. As it happens, it is the first tradition – that of transcendental institutionalism – on which today’s mainstream political philosophy largely draws in its exploration of the theory of justice. The most powerful and momentous exposition of this

* As Rawls explains: ‘The other limitation on our discussion is that for the most part I examine the principles of justice that would regulate a well-ordered society. Everyone is presumed to act justly and to do his part in upholding just institutions.’ (*A Theory of Justice* (Cambridge, MA: Harvard University Press, 1971), pp. 7–8.)

approach to justice can be found in the work of the leading political philosopher of our time, John Rawls (whose ideas and far-reaching contributions will be examined in Chapter 2 ‘Rawls and Beyond’).^{*} Indeed, Rawls’s ‘principles of justice’ in his *A Theory of Justice* are defined entirely in relation to perfectly just institutions, though he also investigates – very illuminatingly – the norms of right behaviour in political and moral contexts.[†]

Also a number of the other pre-eminent contemporary theorists of justice have, broadly speaking, taken the transcendental institutional route – I think here of Ronald Dworkin, David Gauthier, Robert Nozick, among others. Their theories, which have provided different, but respectively important, insights into the demands of a ‘just society’, share the common aim of identifying just rules and institutions, even though their identifications of these arrangements come in very different forms. The characterization of perfectly just institutions has become the central exercise in the modern theories of justice.

THE POINT OF DEPARTURE

In contrast with most modern theories of justice, which concentrate on the ‘just society’, this book is an attempt to investigate realization-based comparisons that focus on the advancement or retreat of justice. It is, in this respect, not in line with the strong and more philosophically celebrated tradition of transcendental institutionalism that emerged in the Enlightenment period (led by Hobbes and developed by Locke, Rousseau and Kant, among others), but more in the ‘other’

^{*} He explained in *A Theory of Justice* (1971): ‘My aim is to present a conception of justice which generalizes and carries to a higher level of abstraction the familiar theory of the social contract as found, say, in Locke, Rousseau, and Kant’ (p. 10). See also his *Political Liberalism* (New York: Columbia University Press, 1993). The ‘contractarian’ routes of Rawls’s theory of justice had already been emphasized by him in his early – pioneering – paper, ‘Justice as Fairness’, *Philosophical Review*, 67 (1958).

[†] In suggesting the need for what he calls a ‘reflective equilibrium’, Rawls builds into his social analysis the necessity to subject one’s values and priorities to critical scrutiny. Also, as was briefly mentioned earlier, the ‘just institutions’ are identified in Rawlsian analysis with the assumption of compliance of actual conduct with the right behavioural rules.

tradition that also took shape in about the same period or just after (pursued in various ways by Smith, Condorcet, Wollstonecraft, Bentham, Marx, Mill, among others). The fact that I share a point of departure with these diverse thinkers does not, of course, indicate that I agree with their substantive theories (that should be obvious enough, since they themselves differed so much from each other), and going beyond the shared point of departure, we have to look also at some points of eventual arrival.* The rest of the book will explore that journey.

Importance must be attached to the starting point, in particular the selection of some questions to be answered (for example, ‘how would justice be advanced?’), rather than others (for example, ‘what would be perfectly just institutions?’). This departure has the dual effect, first, of taking the comparative rather than the transcendental route, and second, of focusing on actual realizations in the societies involved, rather than only on institutions and rules. Given the present balance of emphases in contemporary political philosophy, this will require a radical change in the formulation of the theory of justice.

Why do we need such a dual departure? I begin with transcendentalism. I see two problems here. First, there may be no reasoned agreement at all, even under strict conditions of impartiality and open-minded scrutiny (for example, as identified by Rawls in his ‘original position’) on the nature of the ‘just society’: this is the issue of the *feasibility* of finding an agreed transcendental solution. Second, an exercise of practical reason that involves an actual choice demands a framework for comparison of justice for choosing among the feasible alternatives and not an identification of a possibly unavailable perfect situation that could not be transcended: this is the issue of the *redundancy* of the search for a transcendental solution. I shall presently discuss these problems with the transcendental focus (both feasibility and redundancy), but before that let me comment briefly on the institutional concentration involved in the approach of transcendental institutionalism.

* Also these authors use the word ‘justice’ in many different ways. As Adam Smith noted, the term ‘justice’ has ‘several different meanings’ (*The Theory of Moral Sentiments*, 6th edn (London: T. Cadell, 1790), VII. ii. 1. 10 in the Clarendon Press edition (1976), p. 269). I shall examine Smith’s ideas on justice in the broadest sense.

This second component of the departure concerns the need to focus on actual realizations and accomplishments, rather than only on the establishment of what are identified as the right institutions and rules. The contrast here relates, as was mentioned earlier, to a general – and much broader – dichotomy between an *arrangement-focused* view of justice, and a *realization-focused* understanding of justice. The former line of thought proposes that justice should be conceptualized in terms of certain organizational arrangements – some institutions, some regulations, some behavioural rules – the active presence of which would indicate that justice is being done. The question to ask in this context is whether the analysis of justice must be so confined to getting the basic institutions and general rules right? Should we not also have to examine what emerges in the society, including the kind of lives that people can actually lead, given the institutions and rules, but also other influences, including actual behaviour, that would inescapably affect human lives?

I shall consider the arguments for the two respective departures in turn. I start with the problems of transcendental identification, beginning with the question of feasibility, and shall take up the issue of redundancy later.

FEASIBILITY OF A UNIQUE TRANSCENDENTAL AGREEMENT

There can be serious differences between competing principles of justice that survive critical scrutiny and can have claims to impartiality. This problem is serious enough, for example, for John Rawls's assumption that there will be a unanimous choice of a unique set of 'two principles of justice' in a hypothetical situation of primordial equality (he calls it 'the original position'), where people's vested interests are not known to the people themselves. This presumes that there is basically only one kind of impartial argument, satisfying the demands of fairness, shorn of vested interests. This, I would argue, may be a mistake.

There can be differences, for example, in the exact comparative weights to be given to distributional equality, on the one hand, and

overall or aggregate enhancement, on the other. In his transcendental identification, John Rawls pinpoints one such formula (the lexicographic maximin rule, to be discussed in Chapter 2), among many that are available, without convincing arguments that would eliminate all other alternatives that might compete with Rawls's very special formula for impartial attention.* There can be many other reasoned differences involving the particular formulae on which Rawls concentrates in his two principles of justice, without showing us why other alternatives would not continue to command attention in the impartial atmosphere of his original position.

If a diagnosis of perfectly just social arrangements is incurably problematic, then the entire strategy of transcendental institutionalism is deeply impaired, even if every conceivable alternative in the world were available. For example, the two principles of justice in John Rawls's classic investigation of 'justice as fairness', which will be more fully discussed in Chapter 2, are precisely about perfectly just institutions in a world where all alternatives are available. However, what we do not know is whether the plurality of reasons for justice would allow one unique set of principles of justice to emerge in the original position. The elaborate exploration of Rawlsian social justice, which proceeds step by step from the identification and establishment of just institutions, would then get stuck at the very base.

In his later writings, Rawls makes some concessions to the recognition that 'citizens will of course differ as to which conceptions of political justice they think most reasonable'. Indeed, he goes on to say in *The Law of Peoples* (1999):

The content of public reason is given by a family of political conceptions of justice, and not by a single one. There are many liberalisms and related views, and therefore many forms of public reason specified by a family of reasonable political conceptions. Of these, justice as fairness, whatever its merits, is but one.⁴

* Different types of impartial rules of distribution are discussed in my *On Economic Inequality* (Oxford: Clarendon Press, 1973; extended edn, with a new Annexe, jointly with James Foster, 1997). See also Alan Ryan (ed.), *Justice* (Oxford: Clarendon Press, 1993), and David Miller, *Principles of Social Justice* (Cambridge, MA: Harvard University Press, 1999).

It is not, however, clear how Rawls would deal with the far-reaching implications of this concession. The specific institutions, firmly chosen for the basic structure of society, would demand one specific resolution of the principles of justice, in the way Rawls had outlined in his early works, including *The Theory of Justice* (1971).^{*} Once the claim to uniqueness of the Rawlsian principles of justice is dropped (the case for which is outlined in Rawls's later works), the institutional programme would clearly have serious indeterminacy, and Rawls does not tell us much about how a particular set of institutions would be chosen on the basis of a set of competing principles of justice that would demand different institutional combinations for the basic structure of the society. Rawls could, of course, resolve that problem by abandoning the transcendental institutionalism of his earlier work (particularly of *The Theory of Justice*), and this would be the move that would appeal most to this particular author.[†] But I am afraid I am not able to claim that this was the direction in which Rawls himself was definitely heading, even though some of his later works raise that question forcefully.

THREE CHILDREN AND A FLUTE: AN ILLUSTRATION

At the heart of the particular problem of a unique impartial resolution of the perfectly just society is the possible sustainability of plural and competing reasons for justice, all of which have claims to impartiality and which nevertheless differ from – and rival – each other. Let me

^{*} Rawls discusses the difficulties in arriving at a unique set of principles to guide institutional choice in the original position in his later book *Justice as Fairness: A Restatement*, edited by Erin Kelly (Cambridge, MA: Harvard University Press, 2001), pp. 132–4. I am most grateful to Erin Kelly for discussing with me the relation between Rawls's later writings and his earlier formulations of the theory of justice as fairness.

[†] John Gray's scepticism about the Rawlsian theory of justice is much more radical than mine, but there is an agreement between us in the rejection of the belief that questions of value can have only one right answer. I also agree that the 'diversity of ways of life and regimes is a mark of human freedom, not of error' (*Two Faces of Liberalism* (Cambridge: Polity Press, 2000), p. 139). My inquiry concerns reasoned agreements that can nevertheless be reached on how injustice can be reduced, despite our different views on 'ideal' regimes.

illustrate the problem with an example in which you have to decide which of three children – Anne, Bob and Carla – should get a flute about which they are quarrelling. Anne claims the flute on the ground that she is the only one of the three who knows how to play it (the others do not deny this), and that it would be quite unjust to deny the flute to the only one who can actually play it. If that is all you knew, the case for giving the flute to the first child would be strong.

In an alternative scenario, it is Bob who speaks up, and defends his case for having the flute by pointing out that he is the only one among the three who is so poor that he has no toys of his own. The flute would give him something to play with (the other two concede that they are richer and well supplied with engaging amenities). If you had heard only Bob and none of the others, the case for giving it to him would be strong.

In another alternative scenario, it is Carla who speaks up and points out that she has been working diligently for many months to make the flute with her own labour (the others confirm this), and just when she had finished her work, ‘just then’, she complains, ‘these expropriators came along to try to grab the flute away from me’. If Carla’s statement is all you had heard, you might be inclined to give the flute to her in recognition of her understandable claim to something she has made herself.

Having heard all three and their different lines of reasoning, there is a difficult decision that you have to make. Theorists of different persuasions, such as utilitarians, or economic egalitarians, or no-nonsense libertarians, may each take the view that there is a straightforward just resolution staring at us here, and there is no difficulty in spotting it. But almost certainly they would respectively see totally different resolutions as being obviously right.

Bob, the poorest, would tend to get fairly straightforward support from the economic egalitarian if he is committed to reducing gaps in the economic means of people. On the other hand, Carla, the maker of the flute, would receive immediate sympathy from the libertarian. The utilitarian hedonist may face the hardest challenge, but he would certainly tend to give weight, more than the libertarian or the economic egalitarian, to the fact that Anne’s pleasure is likely to be stronger because she is the only one who can play the flute (there is also the general dictum of ‘waste not, want not’). Nevertheless, the utilitarian

should also recognize that Bob's relative deprivation could make his incremental gain in happiness from getting the flute that much larger. Carla's 'right' to get what she has made may not resonate immediately with the utilitarian, but deeper utilitarian reflection would nevertheless tend to take some note of the requirements of work incentives in creating a society in which utility-generation is sustained and encouraged through letting people keep what they have produced with their own efforts.*

The libertarian's support for giving the flute to Carla will not be conditional in the way it is bound to be for the utilitarian on the working of incentive effects, since a libertarian would take direct note of a person's right to have what people have produced themselves. The idea of the right to the fruits of one's labour can unite right-wing libertarians and left-wing Marxists (no matter how uncomfortable each might be in the company of the other).†

The general point here is that it is not easy to brush aside as foundationless any of the claims based respectively on the pursuit of human fulfilment, or removal of poverty, or entitlement to enjoy the products of one's own labour. The different resolutions all have serious arguments in support of them, and we may not be able to identify, without some arbitrariness, any of the alternative arguments as being the one that must invariably prevail.‡

I also want to draw attention here to the fairly obvious fact that the

* We are, of course, considering here a simple case in which who has produced what can be readily identified. This may well be easy enough with the single-handed making of a flute by Carla. That kind of diagnosis could, however, raise deep problems when various factors of production, including non-labour resources, are involved.

† As it happens, Karl Marx himself became rather sceptical of the 'right to one's labour', which he came to see as a 'bourgeois right', to be ultimately rejected in favour of 'distribution according to needs', a point of view he developed with some force in his last substantial work, *The Critique of the Gotha Program* (1875). The importance of this dichotomy is discussed in my book, *On Economic Inequality* (Oxford: Clarendon Press, 1973), Chapter 4. See also G. A. Cohen, *History, Labour and Freedom: Themes from Marx* (Oxford: Clarendon Press, 1988).

‡ As Bernard Williams has argued, 'Disagreement does not necessarily have to be overcome.' Indeed, it 'may remain an important and constitutive feature of our relations to others, and also be seen as something that is merely to be expected in the light of the best explanations we have of how such disagreement arises' (*Ethics and the Limits of Philosophy* (London: Fontana, 1985), p. 133).

differences between the three children's justificatory arguments do not represent divergences about what constitutes individual advantage (getting the flute is taken to be advantageous by each of the children and is accommodated by each of the respective arguments), but about the principles that should govern the allocation of resources in general. They are about how social arrangements should be made and what social institutions should be chosen, and through that, about what social realizations would come about. It is not simply that the vested interests of the three children differ (though of course they do), but that the three arguments each point to a different type of impartial and non-arbitrary reason.

This applies not only to the discipline of fairness in the Rawlsian original position, but also to other demands of impartiality, for example Thomas Scanlon's requirement that our principles satisfy 'what others could not reasonably reject'.⁵ As was mentioned earlier, theorists of different persuasions, such as utilitarians, or economic egalitarians, or labour right theorists, or no-nonsense libertarians, may each take the view that there is one straightforward just resolution that is easily detected, but they would each argue for totally different resolutions as being obviously right. There may not indeed exist any identifiable perfectly just social arrangement on which impartial agreement would emerge.

A COMPARATIVE OR A TRANSCENDENTAL FRAMEWORK?

The problem with the transcendental approach does not arise only from the possible plurality of competing principles that have claims to being relevant to the assessment of justice. Important as the problem of the non-existence of an identifiable perfectly just social arrangement is, a critically important argument in favour of the comparative approach to the practical reason of justice is not just the infeasibility of the transcendental theory, but its redundancy. If a theory of justice is to guide reasoned choice of policies, strategies or institutions, then the identification of fully just social arrangements is neither necessary nor sufficient.

To illustrate, if we are trying to choose between a Picasso and a Dali, it is of no help to invoke a diagnosis (even if such a transcendental diagnosis could be made) that the ideal picture in the world is the *Mona Lisa*. That may be interesting to hear, but it is neither here nor there in the choice between a Dali and a Picasso.⁶ Indeed, it is not at all necessary to talk about what may be the greatest or most perfect picture in the world, to choose between the two alternatives that we are facing. Nor is it sufficient, or indeed of any particular help, to know that the *Mona Lisa* is the most perfect picture in the world when the choice is actually between a Dali and a Picasso.

This point may look deceptively simple. Would not a theory that identifies a transcendental alternative also, through the same process, tell us what we want to know about comparative justice? The answer is no – it does not. We may, of course, be tempted by the idea that we can rank alternatives in terms of their respective closeness to the perfect choice, so that a transcendental identification may indirectly yield also a ranking of alternatives. But that approach does not get us very far, partly because there are different dimensions in which objects differ (so that there is the further issue of assessing the relative importance of distances in distinct dimensions), and also because descriptive closeness is not necessarily a guide to valuational proximity (a person who prefers red wine to white may prefer either to a mixture of the two, even though the mixture is, in an obvious descriptive sense, closer to the preferred red wine than pure white wine would be).

It is, of course, possible to have a theory that does both comparative assessments between pairs of alternatives, and a transcendental identification (when that is not made impossible through the surviving plurality of impartial reasons that have claims on our attention). That would be a ‘conglomerate’ theory, but neither of the two different types of judgements follows from each other. More immediately, the standard theories of justice that are associated with the approach of transcendental identification (for example, those of Hobbes, Rousseau, Kant or, in our time, Rawls or Nozick) are not, in fact, conglomerate theories. It is, however, true that in the process of developing their respective transcendental theories, some of these authors have presented particular arguments that happen to carry

over to the comparative exercise. But in general the identification of a transcendental alternative does not offer a solution to the problem of comparisons between any two non-transcendental alternatives.

Transcendental theory simply addresses a different question from those of comparative assessment – a question that may be of considerable intellectual interest, but which is of no direct relevance to the problem of choice that has to be faced. What is needed instead is an agreement, based on public reasoning, on rankings of alternatives that can be realized. The separation between the transcendental and the comparative is quite comprehensive, as will be more fully discussed in Chapter 4 ('Voice and Social Choice'). As it happens, the comparative approach is central to the analytical discipline of 'social choice theory', initiated by the Marquis de Condorcet and other French mathematicians in the eighteenth century, mainly working in Paris.⁷ The formal discipline of social choice was not much used for a long time, though work continued in the specific sub-area of voting theory. The discipline was revived and established in its present form by Kenneth Arrow in the middle of the twentieth century.⁸ This approach has become, in recent decades, quite an active field of analytical investigation, exploring ways and means of basing comparative assessments of social alternatives on the values and priorities of the people involved.* Since the literature of social choice theory is typically quite technical and largely mathematical, and since many of the results in the field cannot be established except through fairly extensive mathematical reasoning,† its basic approach has received relatively little attention,

* On the general characteristics of the social choice approach which motivates and supports the analytical results, see my Alfred Nobel Lecture in Stockholm in December 1998, later published as 'The Possibility of Social Choice', *American Economic Review*, vol. 89 (1999), and in *Les Prix Nobel 1998* (Stockholm: The Nobel Foundation, 1999).

† The mathematical formulations are, however, of some importance for the content of the arguments presented through axioms and theorems. For discussion of some of the linkages between formal and informal arguments, see my *Collective Choice and Social Welfare* (San Francisco, CA: Holden-Day; republished, Amsterdam: North-Holland, 1979), in which the mathematical and informal chapters alternate. See also my critical survey of the literature in 'Social Choice Theory', in Kenneth Arrow and Michael Intriligator (eds) *Handbook of Mathematical Economics* (Amsterdam: North-Holland, 1986).

especially from philosophers. And yet the approach and its underlying reasoning are quite close to the commonsense understanding of the nature of appropriate social decisions. In the constructive approach I try to present in this work, insights from social choice theory will have a substantial role to play.*

REALIZATIONS, LIVES AND CAPABILITIES

I turn now to the second part of the departure, to wit the need for a theory that is not confined to the choice of institutions, nor to the identification of ideal social arrangements. The need for an accomplishment-based understanding of justice is linked with the argument that justice cannot be indifferent to the lives that people can actually live. The importance of human lives, experiences and realizations cannot be supplanted by information about institutions that exist and the rules that operate. Institutions and rules are, of course, very important in influencing what happens, and they are part and parcel of the actual world as well, but the realized actuality goes well beyond the organizational picture, and includes the lives that people manage – or do not manage – to live.

In noting the nature of human lives, we have reason to be interested not only in the various things we succeed in doing, but also in the freedoms that we actually have to choose between different kinds of lives. The freedom to choose our lives can make a significant contribution to our well-being, but going beyond the perspective of well-being, the freedom itself may be seen as important. Being able to reason and choose is a significant aspect of human life. In fact, we are under no obligation to seek only our own well-being, and it is for us to decide what we have good reason to pursue (this question will be further discussed in Chapters 8 and 9). We do not have to be a Gandhi, or a Martin Luther King Jr., or a Nelson Mandela, or a Desmond Tutu, to recognize that we can have aims or priorities that differ from

* The connections between social choice theory and the theory of justice are particularly explored in Chapter 4, ‘Voice and Social Choice’.

the single-minded pursuit of our own well-being only.* The freedoms and capabilities we enjoy can also be valuable to us, and it is ultimately for us to decide how to use the freedom we have.

It is important to emphasize, even in this brief account (a fuller exploration is pursued later in the book, particularly in Chapters 11–13), that if social realizations are assessed in terms of capabilities that people actually have, rather than in terms of their utilities or happiness (as Jeremy Bentham and other utilitarians recommend), then some very significant departures are brought about. First, human lives are then seen inclusively, taking note of the substantive freedoms that people enjoy, rather than ignoring everything other than the pleasures or utilities they end up having. There is also a second significant aspect of freedom: it makes us accountable for what we do.

Freedom to choose gives us the opportunity to decide what we should do, but with that opportunity comes the responsibility for what we do – to the extent that they are chosen actions. Since a capability is the power to do something, the accountability that emanates from that ability – that power – is a part of the capability perspective, and this can make room for demands of duty – what can be broadly called deontological demands. There is an overlap here between agency-centred concerns and the implications of capability-based approach; but there is nothing immediately comparable in the utilitarian perspective (tying one's responsibility to one's own happiness).† The perspective of social realizations, including the actual capabilities that people can have, takes us inescapably to a large variety of further issues that turn out to be quite central to the analysis of justice in the world, and these will have to be examined and scrutinized.

* Adam Smith argued that even for selfish people, 'there are evidently some principles in his nature, which interest him in the fortune of others' and went on to suggest: 'The greatest ruffian, the most hardened violator of the laws of society, is not altogether without it' (*The Theory of Sentiments*, 1.1.1.1. in the 1976 edn, p. 9).

† This issue will be further discussed in Chapters 9, 'Plurality of Impartial Reasons', and 13, 'Happiness, Well-being and Capabilities'.